

(S E R V E D)
(JUNE 5, 1996)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

DOCKET NO. 96-13

HOLT CARGO SYSTEMS, INC. and ASTRO HOLDINGS, INC.;
HOLT HAULING AND WAREHOUSING SYSTEMS, INC.

v.

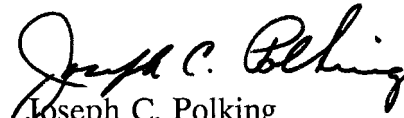
DELAWARE RIVER PORT AUTHORITY;
PORT OF PHILADELPHIA AND CAMDEN;
PHILADELPHIA REGIONAL PORT AUTHORITY,
and PASHA AUTO WAREHOUSING, INC.

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint filed by Holt Cargo Systems, Inc. and Astro Holdings, Inc.; Holt Hauling and Warehousing Systems, Inc. ("Complainants") against Delaware River Port Authority; Port of Philadelphia and Camden; Philadelphia Regional Port Authority, and Pasha Auto Warehousing, Inc. ("Respondents") was served June 5, 1996. Complainants allege that Respondents have violated, and continue to violate, sections 10(a)(3) (b)(11), (b)(12) and (d)(l) of the Shipping Act of 1984, 46 U.S.C. app. § § 1709(a)(3), (b)(11), (b)(12) and (d)(l), by failing to operate under an agreement according to its terms, and engaging in voluminous unreasonable and discriminatory practices to reduce Complainants' competitiveness, to exclude Complainants from the port, and to take

over and operate Complainants' business enterprises at the Ports of Philadelphia and Camden.

This proceeding has been assigned to the office of Administrative Law Judges. Hearing in this matter, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61, and only after consideration has been given by the parties and the presiding officer to the use of alternative forms of dispute resolution. The hearing shall include oral testimony and cross-examination in the discretion of the presiding officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.61, the initial decision of the presiding officer in this proceeding shall be issued by June 5, 1997, and the final decision of the Commission shall be issued by October 3, 1997.


Joseph C. Polking
Secretary

also provides for the settling *de minimis* PRPs to receive credits against their base *de minimis* settlement amounts, for any properly documented prior payments made by the *de minimis* PRPs to the group of major PRPs who previously did work at the Site. Pursuant to the Agency's *de minimis* settlement offer, numerous settling *de minimis* PRPs have appropriately documented their prior payments and applied for credits. Subsequently, EPA has amended Appendix D to the Consent Order to reflect the amount of all credits approved by EPA, and the final revised individual *de minimis* settlement amounts.

DATES: Comments on this *de minimis* settlement must be received within 30 days from publication of this notice.

ADDRESSES: Written comments relating to this *de minimis* settlement, Docket Number V-W-96-C-337, should be sent to Cynthia N. Kawakami, Associate Regional Counsel, U.S. Environmental Protection Agency, Region 5, Mail Code: CM-29A, 77 West Jackson Boulevard, Chicago, Illinois 60604-3590.

ADDITIONAL INFORMATION: Copies of the Administrative Order by Consent and the Administrative Record for this Site are available at the following address for review. It is strongly recommended that you telephone Ms. Beth Guria at (312) 886-5892 before visiting the Region 5 Office. U.S. Environmental Protection Agency, Region 5, Superfund Division, Emergency Response Branch, 77 West Jackson & Boulevard, Chicago, Illinois 60604-3590.

Authority: The Comprehensive Environmental Response, Compensation, and Liability Act of 1980, as amended, 42 U.S.C. Sections 9601 *et seq.*

William E. Muno,
Director, Superfund Division.

[FR Doc. 9614909 Filed 6-11-96; 8:45am]

BILLING CODE 6560-50-P

FEDERAL MARITIME COMMISSION

[Docket No. 96-12]

Compania Sud Americana de Vapores S.A. v. Inter-American Freight Conference: Notice of Filing of Complaint and Assignment

Notice is given that a complaint filed by Compania Sud Americana de Vapores S.A. ("Complainant") against Inter-American Freight Conference ("Respondent") was served June 5, 1996. Complainant alleges that Respondent has violated sections 10(a) (2) and (3) of the Shipping Act of 1984, 46 U.S.C. app. §§ 1709(a)(2) and (3) by

using funds from complainant's Irrevocable Standby Letter of Credit for costs in winding up a Brazil corporation, contrary to the provisions of the Inter-American Freight Conference Agreement.

This proceeding has been assigned to the office of Administrative Law Judges. Hearing in this matter, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61, and only after consideration has been given by the parties and the presiding officer to the use of alternative forms of dispute resolution. The hearing shall include oral testimony and cross-examination in the discretion of the presiding officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.61, the initial decision of the presiding officer in this proceeding shall be issued by June 5, 1997, and the final decision of the Commission shall be issued by October 3, 1997.

Joseph C. Polking,

Secretary.

[FR Doc. 9614782 Filed 6-11-96; 8:45 am]

BILLING CODE 6730-01-M

[Docket No. 96-13]

Holt Cargo Systems, inc. and Astro Holdings, Inc.; Holt Hauling and Warehousing Systems, inc. v. Delaware River Port Authority; Port of Philadelphia and Camden; Philadelphia Regional Port Authority, and Pasha Auto Warehousing, inc.; Notice of Filing of Complaint and Assignment

Notice is given that a complaint filed by Holt Cargo Systems, Inc. and Astro Holdings, Inc.; Holt Hauling and Warehousing Systems, Inc. ("Complainants") against Delaware River Port Authority; Port of Philadelphia and Camden; Philadelphia Regional Port Authority, and Pasha Auto Warehousing, Inc. ("Respondents") was served June 5, 1996. Complainants allege that Respondents have violated, and continue to violate, sections 10(a) (3) (b)(11), (b)(12) and (d)(1) of the Shipping Act of 1984, 46 U.S.C. app. §§ 1709(a)(3), (b)(11), (b)(12) and (d)(1), by failing to operate under an agreement according to its terms, and engaging in voluminous unreasonable and discriminatory practices to reduce

Complainants' competitiveness, to exclude Complainants from the port, and to take over and operate Complainants' business enterprises at the Ports of Philadelphia and Camden.

This proceeding has been assigned to the office of Administrative Law Judges. Hearing in this matter, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61, and only after consideration has been given by the parties and the presiding officer to the use of alternative forms of dispute resolution. The hearing shall include oral testimony and cross-examination in the discretion of the presiding officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.61, the initial decision of the presiding officer in this proceeding shall be issued by June 5, 1997, and the final decision of the Commission shall be issued by October 3, 1997.

Joseph C. Polking,

Secretary.

[FR Doc. 9614783 Filed 6-11-96; 8:45am]

BILLING CODE 6730-01-M

FEDERAL RESERVE SYSTEM

Change in Bank Control Notices; Acquisitions of Shares of Banks or Bank Holding Companies

The notificants listed below have applied under the Change in Bank Control Act (12 U.S.C. 1817(j)) and § 225.41 of the Board's Regulation Y (12 CFR 225.41) to acquire a bank or bank holding company. The factors that are considered in acting on the notices are set forth in paragraph 7 of the Act (12 U.S.C. 1817(j)(7)).

The notices are available for immediate inspection at the Federal Reserve Bank indicated. Once the notices have been accepted for processing, they will also be available for inspection at the offices of the Board of Governors. Interested persons may express their views in writing to the Reserve Bank indicated for that notice or to the offices of the Board of Governors. Comments must be received not later than June 26, 1996.

A. Federal Reserve Bank of Atlanta
(Zane R. Kelley, Vice President) 104 Marietta Street, N.W., Atlanta, Georgia 30303;